

Report a personal data breach

This form is for organisations that have experienced a personal data breach and need to report it to the ICO. **Please do not include any of the personal data involved in the breach when completing this form.** For example, do not provide the names of data subjects affected by the breach. If we need this information, we will ask for it later.

You should ensure the information provided is as accurate as possible and supply as much detail as possible.

If you have already spoken to a member of ICO staff about this breach, please give their name:

Report type

- ☐ Initial report
- ☐ Follow-up report

(Follow-up reports only) ICO case reference:

Reason for report – after consulting the guidance

- ☒ I consider the incident meets the threshold to report
- ☐ I do not consider the incident meets the threshold to report, however I want you to be aware
- ☐ I am unclear whether the incident meets the threshold to report

About the breachPlease describe what happened

Please describe how the incident occurred

The address of the mother and the child was inadvertently disclosed to the father.

How did the organisation discover the breach?

Copies of pupil report and attendance sent to both parents as is usual for those with parental responsibility living apart. Attendance for the academic year 'print out' contained the address of pupil/ Mum. Mum called 19.7 and said that Dad had contacted mum by text to say he had her address.

Mum called school and advised school that she had previously said that Dad is not allowed to have the address. There were no notes on the MIS system to this effect and neither of the office staff were aware of being told this. After further investigation a document containing the notes of a conversation between the previous head the deputy head and Mum was found on CPOMS from 2018, stating that Dad was not to have Mum's address. The office staff were not alerted to this CPOMS record, or the conversation and therefore were not aware. The office staff who sent the information out apologised to Mum and the Head teacher also spoke to Mum. Mum has taken action to protect herself. She has contacted the police to make them aware that Dad has her address. She understands that it was an administrative error but wishes to ensure this does not happen again.

What preventative measures did you have in place?

There was a note made on the CPOMS system that the child and the mothers address was not to be disclosed to the father.

Information of this nature is documented as a 'flag' on the pupil record of the MIS system. Note on pupil files to confirm this is the case.

Was the breach caused by a cyber incident?

☐ Yes

☒ NO

☐ Don't know

When did the breach happen?

Date: 16.07.21 Time: 4.30 pm

When did you discover the breach?

Date: 19.07.21 Time: 12.30pm

Categories of personal data included in the breach (tick all that apply)

Data revealing racial or ethnic origin

Political opinions

Religious or philosophical beliefs

Trade union membership

Sex life data

Sexual orientation data

Gender reassignment data

Health data

X Basic personal identifiers, eg name, contact details

Identification data, eg usernames, passwords

Economic and financial data, eg credit card numbers, bank details

Official documents, eg driving licences

Location data, eg coordinates

Genetic or biometric data

Criminal convictions, offences

Other (please give details below)

Number of personal data records concerned?

2

How many data subjects could be affected?

2

Categories of data subjects affected (tick all that apply)

Employees

Users

Subscribers

Students

Customers or prospective customers

Patients

X Children

Vulnerable adults

Other (please give details below)

X Parent of the child who is a student at the school

Potential consequences of the breach

The father was not aware of the address of the mother and the child who resides with her. He is now aware and has contacted her by text to tell her that he knows where she lives.

Is the personal data breach likely to result in a high risk to data subjects?

X YES

☐ No

☐ Not yet known

Please give details

(Cyber incidents only) Recovery time

☐ We have successfully recovered from the incident with all personal data now at the same state it was shortly prior to the incident

We have determined that we are able to restore all personal data to the
☐ same state it was shortly prior to the incident and are in the process of doing this

We have determined that we are unable to restore the personal data to the
☐ same state it was at shortly prior to the incident, ie backups failed, no current backup, backup encrypted etc

☐ We are not yet able to determine if personal data can be restored to the same state it was shortly prior to the incident

Had the staff member involved in this breach received data protection training in the last two years?

X YES

☐ Yes

☐ No

☐ Don't know

(Initial reports only) If there has been a delay in reporting this breach, please explain why

Taking action

Describe the actions you have taken, or propose to take, as a result of the breach

1. The school office and head teacher have spoken to the mother and have apologised for the breach that has occurred. The mother has informed the school that she has taken steps to ensure her safety by informing the police that the father is aware of her address and that he has informed her by text of this.
2. Request to Dad to destroy the personal data of the mother and the child.
3. Parents only permitted to access attendance data via their own login in future. Hard printed copies of this data are not to be sent to parents.
4. Flag on MIS system so that data can be clearly identified as not to be shared.
5. Note on physical pupil's record to state "do not share address".
6. Ensure that office staff are informed orally when necessary, as well as alerted via CPOMS.
7. Ensure that staff are informed of the need to be GDPR vigilant to avoid data breaches and to increase awareness of how such breaches can occur in order to prevent breaches of this nature occurring again.

Have you taken actions to contain the breach? Please describe these remedial actions

1. Request Dad to destroy the copy of the child's mums data.
2. The head teacher has spoken with the mother and the mother has contacted the police.

Please outline any steps you are taking to prevent a recurrence, and when you expect they will be completed

1. Parents only permitted to access attendance data via their own login in future. Hard printed copies of this data are not to be sent to parents. Completed
2. Flag on MIS system so that data can be clearly identified as not to be shared.
3. Clear flagged note on the physical pupil's record to state "do not share address".
4. Ensure staff are made orally aware of information of this nature when necessary as well as being informed via CPOMS.
3. Ensure that staff are informed of the need to be GDPR vigilant to avoid breaches and to increase awareness of how such breaches can occur in order to prevent breaches of this nature occurring again.

Actions completed 17.07.21

Have you told data subjects about the breach?

The data subject alerted the school to the breach and the school have apologised and spoken with the mother about her welfare and that of the child.

- ☐ Yes – we have determined that it is unlikely there is a high risk to data subjects, however decided to tell them anyway
- ☐ No – but we are planning to because we have determined it is likely there is a high risk to data subjects
- ☒ No – we determined the incident did not meet the threshold for communicating it to data subjects

Have you told, or are you planning to tell any other organisations about the breach?

☐ Yes

X NO

☐ Don't know

If you answered yes, please specify

About you

Organisation (data controller) name

ACLE ST EDMUND PRIMARY SCHOOL

Registration number

121024

If not registered, please give exemption reason

Business sector

Registered organisation address

FLETCHER WAY
ACLE
NORWHICH

NR13 3RQ

Person making this report

In case we need to contact you about this report

Name: Mrs C Martin

Email: dpo@dataprotection.education

Phone: 0800 0862018

Data protection officer

Or the senior person responsible for data protection in your organisation

Same details as above

Name:

Email:

Phone:

Sending this form

Initial report

If this is your initial report, please send your completed form to icocasework@ico.org.uk, with 'Personal data breach notification' in the subject field.

Follow up report

If this is a follow up report, please *reply to the email we sent you*, attaching this completed form to it. (Make sure you leave the subject line as it is – this will ensure your follow-up gets added to your case).

OR, send by post to:

The Information Commissioner's Office
Wycliffe House
Water Lane
Wilmslow
Cheshire
SK9 5AF

Please note that we cannot guarantee security of forms or any attachments sent by email.

What happens next?

You should read our guidance to determine what steps you should take.

Based on the information you have provided, we will contact you within seven calendar days to provide information about our next steps. If this is your initial report, we'll give you a case reference number. If we consider the incident is minor or you have indicated that you do not consider it meets the threshold for reporting, you may not receive a response from us.

If your correspondence relates to an existing case, we'll add it to your case for your case officer to consider.

If you need any help in completing this form, please contact our helpline on 0303 123 1113 (operates 9am to 5pm Monday to Friday).

For information about what we do with personal data see our [privacy notice](#).